



CHAPTER cxiv.

An Act to confirm a Provisional Order made by the Board of Education under Sections 17 (7) and 21 of the Education Act 1902 relating to the County Borough of Cardiff. A.D. 1904.
[22nd July 1904.]

WHEREAS the Board of Education have under sections 17 (7) and 21 of the Education Act 1902 made the Provisional Order set out in the schedule to this Act and it is requisite that the same should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The following Order as set out in the schedule to this Act shall be and is hereby confirmed and from and after the passing of this Act shall have full validity and force. Confirmation of Order in schedule.

2. This Act may be cited as the Education Board Provisional Order Confirmation (Cardiff) Act 1904. Short title.

A.D. 1904.

SCHEDULE.

No. 1.

COUNTY BOROUGH OF CARDIFF.

Cardiff. Provisional Order made by the Board of Education under Sections 17 (7) and 21 of the Education Act 1902 for the establishment and constitution of an Education Committee for the Council of the County Borough of Cardiff under the said Act.

THE BOARD OF EDUCATION in pursuance of the powers conferred upon them by the Education Act 1902 and of all other powers enabling them in that behalf do order and it is hereby ordered as follows:—

1. The education committee (herein-after called "the committee") of the council of the county borough of Cardiff (herein-after called "the council") shall when complete consist of twenty-five members including the mayor for the time being Two members of the committee shall be women and the other members shall be members of the council :

Provided that if at any time in the opinion of the council a sufficient number of persons qualified as required by this Order cannot be found amongst the members of the council the council may enlarge the committee by the addition of no more than three members chosen by the council from outside its own members.

2. The committee shall include persons experienced in technical and elementary education persons acquainted with the needs of the various kinds of schools in the borough of Cardiff and persons directly engaged in and representative of the commerce trade industries and professions of the said borough.

3. All the members of the committee shall be appointed by the council.

4. The first appointment of the committee shall be made by the council at a meeting of the council to be held within one calendar month from the date of the passing of the Act confirming this Order and the members so appointed shall subject to the provisions of this scheme continue in office until the Ninth day of November One thousand nine hundred and four.

5. Subsequent appointments of the committee (except to fill casual vacancies) shall be made on the Ninth day of November in each year.

[4 EDW. 7.] *Education Board Provisional Order* [Ch. cxiv.]
Confirmation (Cardiff) Act, 1904.

6. A member of the committee may resign on giving to the town clerk notice in writing of his intention so to do and a casual vacancy on the committee shall thereupon occur. A.D. 1904.
Cardiff.

7. On any member of the committee appointed to represent the council ceasing to be a member of the council he shall cease to be a member of the committee and the same disqualifications arising from bankruptcy or absence from the borough which from time to time attach to members of the council shall be deemed to disqualify members of the committee from service on the committee. A member appointed to fill a casual vacancy shall be appointed subject to the same provisions as regulated the appointment of the outgoing member.

8. In the event of a vacancy occurring on the committee the committee may report such vacancy to the next meeting of the council who may thereupon fill up the vacancy.

9.—(a) As from such day (being not more than eighteen months later than the Twenty-sixth March One thousand nine hundred and three) as the Board of Education shall appoint the county governing body constituted under the Welsh Intermediate Education Act 1889 (herein-after called "the Welsh Act") for the said county borough shall cease to exist and all powers duties property and liabilities of the county governing body under any scheme made under the Welsh Act shall be transferred to the council and references in any Act scheme or instrument to the county governing body shall be construed as references to the council.

(b) All matters relating to the exercise of the powers so transferred shall stand referred to the committee in like manner as if they were matters relating to the exercise by the council of their powers under the Education Act 1902 and subject to the provisions of that Act the council may delegate to the committee with or without restrictions or conditions any of the powers so transferred in like manner as if they were powers of the council under that Act.

Given under the Seal of Office of the Board of Education this
Twenty-ninth day of April One thousand nine hundred and
four.

(L.S.)

H. M. LINDSELL
A Principal Assistant Secretary.

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